

25STCV27171 25STCV27171

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-13

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Case Number: 25STCV27171 Hearing Date: August 13, 2026 Dept: 512

HEARING DATE: Thurs., August 13, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Caronna

v. The Jewish Federation of the COMP.

FILED: 09-16-25

Greater San Gabriel and Pomona Valleys FAC

FILED: 10-30-25

CASE NUMBER: 25STCV27171

SAC FILED: 02-03-26

NOTICE: OK

PROCEEDINGS: MOTION

TO STRIKE

MOVING PARTY: Plaintiff

Dorothy Caronna

RESP. PARTY: Defendant The Jewish Federation of the

Greater San Gabriel and Pomona Valleys

MOTION TO STRIKE

(CCP §§ 435; 436)

TENTATIVE RULING:

Plaintiff Dorothy Caronna's Motion to
Strike is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 30, 2026 ☐ Late ☐ None

REPLY: Filed
on August 3, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On September 16, 2025, Plaintiff
Dorothy Caronna ("Plaintiff"), proceeding pro se, filed a Complaint against
Defendant The Jewish Federation of the Greater San Gabriel and Pomona Valleys
("Defendant").

On October 30, 2025, Plaintiff filed a
First Amended Complaint ("FAC") against Defendant.

On February 3, 2026, Plaintiff filed and
served a Second Amended Complaint ("SAC") against Defendant.

On March 17, 2026, Defendant filed an Answer.

On May 13, 2026, the Court denied Plaintiff's Motion for Judgment on the Pleadings as to the Answer. (5/13/26 Order.)

On May 20, 2026, Plaintiff filed the instant Motion to Strike (the "Motion").

On July 30, 2026, Defendant filed an Opposition.

On August 3, 2026, Plaintiff filed a Reply.

II. Legal Standard

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. § 436.)

Finally, Code of Civil Procedure section 435.5 requires that "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5, subd. (a).) (Emphasis added.)

III.

Discussion

Plaintiff moves to strike Defendant's

Answer to the SAC because the Answer was untimely filed. Further, Plaintiff requests \$5,000 in sanctions against Defendant in conjunction with the Motion.

In Opposition, Defendant contends the

Motion is untimely. (Opp., p. 3.) Further, Defendant states the Motion should be denied because Defendant's Answer was filed before default was entered, and the Answer was untimely filed due to inadvertence, surprise, neglect or mistake. (Opp., pp. 4-5.) Finally, Defendant contends Plaintiff's request for \$5,000 in sanctions is legally unsupported. (Opp., p. 6.)

In Reply, Plaintiff states the

Opposition admits the Answer was untimely; Defendant's neglect does not render the instant Motion moot; Plaintiff timely sought entry of default in this matter, but the Court did not process the request quickly enough; any meet and confer issues does not warrant denial of the Motion; and sanctions are requested to compensate Plaintiff for expending the time and resources to address Defendant's untimely Answer. (Reply.)

As an initial matter, the Court finds Plaintiff

has not satisfied the meet and confer requirement of Code of Civil Procedure section 435.5. While Plaintiff states in the Motion that Plaintiff sent defense counsel a meet and confer email, the Court finds the parties failed to meet and confer in person or by telephone regarding the issues raised in the Motion, as mandated by Code of Civil Procedure section 435.5. (Code Civ. Proc. § 435.5, subd. (a).)

Further, the Court finds the Motion is

untimely under Code of Civil Procedure section 435, subdivision (b). Indeed, the Answer was filed on March 17, 2026, and the instant Motion was brought on May 20, 2026; thus, the time allowed to respond to the Answer passed prior to the filing of the Motion. (Code Civ. Proc., § 435, subd. (b); Cal. Rules of Court, rule 3.1322; see also *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.)

Finally, while the Court notes the

record shows the Answer was untimely filed – the docket in this matter

demonstrates that service of the SAC occurred on February 3, 2026, and the Answer was filed on March 17, 2026 – the Court does not find that the interests of justice are served by the Court striking the Answer. First and foremost, the law abhors a forfeiture and values permitting the resolution of cases on the merits. Further, the Court finds Plaintiff's delay in filing the instant Motion weighs against granting the Motion at this juncture, and Plaintiff fails to demonstrate any prejudice from the untimely Answer in the docket, especially as the Answer was only filed approximately one week late and was filed prior to entry of default. Additionally, the Court does not find that Plaintiff was prejudiced by the untimely Answer as Plaintiff's request for default was denied on procedural grounds separate and apart from the Answer being filed (see 4/28/26 Notice of Rejection of Default), and Plaintiff never resubmitted a request for entry of default following the Court's rejection.

For all these reasons, the Motion is DENIED.

IV.

Conclusion

& Order

For the foregoing reasons, Plaintiff Dorothy Caronna's Motion to Strike is DENIED.

Moving party is ordered to give notice.